

November 14, 2013



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13133
(EIGHTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of not more than 25 grams of explosive or pyrotechnic material that has energy density not greater than that of pentaerythritol tetranitrate (PETN), classed as Division 1.4E when packed in a special shipping container. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. This special permit is limited to use for US government purposes.
 - d. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.320 in that the EX number need not be marked on the package, §§ 173.54(a), (e), (j), and (l) in that explosives defined as forbidden under these paragraphs may be transported in accordance with terms of this special permit, § 173.56(b),

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173.57 and 173.58, in that a new explosive need not be examined and tested prior to transportation and §§ 173.60 and 173.62 in that an alternate packing method is authorized.

5. BASIS: This special permit is based on the application of the Department of Defense dated June 5, 2013, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Articles, explosive, n.o.s. (*)	1.4E	UN0471	II

* Technical name of material being shipped

7. SAFETY CONTROL MEASURES:

a. Explosives (including pyrotechnics, articles containing explosives, and waste containing explosives) authorized for transportation under the terms of this special permit must meet the following conditions:

(1) Forbidden explosives substances or articles are limited to samples for evaluation or testing. Only explosives having an energy density not greater than that of PETN are authorized.

(2) No more than 25 grams of liquid or solid explosive substances or articles containing no more than 25 grams (net weight) of explosive may be transported in one package.

(3) An explosive article forbidden under § 173.54(1) must have its means of initiation or ignition protected against accidental functioning during transportation.

(4) The explosives authorized for transportation under this special permit must be transported exclusively for US Government purposes.

b. Packing methods authorized:

(1) Inner packaging:

(i) Solid explosive must be placed in a leak-proof receptacle.

(ii) Liquid explosive must be placed in a 60-milliliter capacity leak-proof glass bottle with threaded plastic lid. The glass bottle must then be wrapped in absorbent material and placed into a one-quart metal paint can fitted with a lid which is closed tight with a ring lock. Sufficient absorbent must be used to prevent movement of the glass bottle inside the metal can.

(iii) Small explosive articles shall be placed in fiberboard or plastic receptacles with sufficient dunnage to prevent movement in the intermediate packaging. Larger explosive articles shall be wrapped in fiberboard or expanded plastic foam or bubble-wrap sheeting to prevent movement in the intermediate packaging.

Inner packaging must be placed in the Intermediate packaging with cushioning material or the material so the inner packaging is located in the center of the intermediate packaging to keep the inner packaging away from the side walls and ends of the capped intermediate packaging.

(2) Intermediate packaging: The following intermediate packagings are authorized:

(i) A 4-inch X 14-inch Schedule 80 seamless steel pipe nipple closed at both ends with 4-inch diameter forged steel end caps, 3,000 psi per ASTM 105, or other caps which have been shown by test to contain the explosive effect of 25 grams of PETN; or

(ii) A 6-inch X 12 to 14-inch Schedule 80 seamless steel pipe nipple closed at both ends with 6-inch diameter malleable iron end caps with a minimum strength of 250 psi, or other caps which have been shown by test to contain the explosive effect of 25 grams of PETN.

For pipe nipples described in paragraphs 7.b.(2)(i) and (ii), the threads must be cut so that the end caps can be screwed on a minimum of 5 threads by hand, but the caps must be tightened with a wrench.

(3) Outer packaging: intermediate packaging must be placed in one of the following outer packagings with sufficient cushioning material or other means to prevent movement of the intermediate packaging.

(i) A cushioned UN 4G fiberboard box, 4C wooden box, 4D plywood box;

(ii) A 4A steel box, 4B aluminum box, 4N metal (other than steel or aluminum) box;

(iii) A 1A2 removable head steel drum, 1B2 removable head aluminum drum, or 1N2 removable head metal (other than steel or aluminum) drum; or

(iv) A container that meets the requirements of the Institute of Makers of Explosives' Safety Library Publication No. 22.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of the special permit must be carried aboard each aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSAPD, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SCW/TG